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Introduced by Sens. FAHY, BRISPORT, CLEARE, COMRIE, GONZALEZ, HARKHAM, JACKSON, KAVANAGH, KRUEGER, MAY, MAYER, PARKER, SALAZAR, SANDERS, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Procurement and Contracts -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Procurement and Contracts in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, the public authorities law and the public buildings law, in relation to the utilization of renewable energy at state-owned facilities in Albany

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Renewable Capitol Act".

3 § 2. The executive law is amended by adding a new section 204 to read
4 as follows:

5 § 204. Renewable capitol project. 1. For the purpose of this section,
6 the following terms shall have the following meanings:

7 (a) The "advisory committee" shall mean the committee established
8 pursuant to paragraph (a) of subdivision three of this section.

9 (b) The "CLCPA" shall mean the New York state climate leadership and
10 community protection act enacted as chapter one hundred six of the laws
11 of two thousand nineteen, as it shall from time to time be amended.

12 (c) "Co-pollutants" shall have the same meaning as set forth in subdi-
13 vision three of section 75-0101 of the environmental conservation law.

14 (d) "Emergency generator" shall mean the set of diesel generators
15 located on Sheridan Avenue in Albany, New York as of the effective date
16 of this section, that are intended to power the empire state plaza

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 complex during an emergency fault condition causing an interruption to
2 normal electricity service from the grid.

3 (e) "Empire state plaza complex" or the "complex" shall mean the
4 complex of state-owned buildings and the land thereon in Albany, New
5 York that utilize the steam distribution network of the Sheridan Avenue
6 steam plant.

7 (f) "Greenhouse gas" shall have the same meaning as set forth in
8 subdivision seven of section 75-0101 of the environmental conservation
9 law.

10 (g) The "local community" shall mean the portion of Albany, New York
11 designated as the local community under the plan, which shall include,
12 at a minimum, the Albany Sheridan Hollow, Arbor Hill, Center Square,
13 Mansion, Washington Park, West Hill and South End neighborhoods.

14 (h) "NYSERDA" shall mean the New York state energy research and devel-
15 opment authority created under section eighteen hundred fifty-two of the
16 public authorities law.

17 (i) The "office of general services" or the "office" shall mean the
18 agency created under section two hundred of this article.

19 (j) The "empire state plaza decarbonization plan" or "plan" shall mean
20 the plan set forth in subdivision three of this section, and mandated by
21 this section and section ninety-one of the public buildings law.

22 (k) The "project" shall mean the work on the empire state plaza
23 complex mandated by this section and section ninety-one of the public
24 buildings law.

25 (l) A "power purchase agreement" shall mean an agreement between two
26 parties for the purchase of electricity.

27 (m) "Renewable energy systems" means systems that entirely generate
28 electricity or thermal energy through use of the following technologies:
29 solar thermal, photovoltaics, on land and offshore wind, hydroelectric,
30 geothermal electric, geothermal ground source heat, tidal energy, wave
31 energy, ocean thermal, and fuel cells which do not utilize a fossil fuel
32 resource in the process of generating electricity or thermal energy.

33 (n) "Sheridan Avenue steam plant" or "steam plant" shall mean the
34 steam plant facility owned by New York state located as of the time of
35 the effective date of this section at 79 Sheridan Avenue in Albany, New
36 York.

37 2. (a) (i) Within three years after the effective date of this
38 section, the office of general services, in consultation with the power
39 authority of the state of New York, shall ensure that all operations
40 that power, heat or cool the empire state plaza complex shall entirely
41 use renewable energy systems, and that the Sheridan Avenue steam plant
42 shall be retired or converted to another purpose that does not require
43 the use of fossil fuels. In satisfying such requirements, the office
44 may demonstrate that the amount of electrical energy credited to the
45 complex annually from renewable sources through a power purchase agree-
46 ment or similar instrument is not less than the amount of electrical
47 energy consumed annually by the complex.

48 (ii) Notwithstanding the mandates under subparagraph (i) of this para-
49 graph, the emergency generator shall be permitted to utilize non-renewa-
50 ble energy, but the office shall be empowered to retire or convert the
51 emergency generator to wholly or entirely utilize renewables if possi-
52 ble.

53 (iii) Notwithstanding subparagraph (i) of this paragraph, the office
54 may propose to the advisory committee to waive the achievement of the
55 mandated three-year deadline in such subparagraph or any component ther-
56 eof or the deadline in such subparagraph in regard to the Sheridan

Avenue steam plant upon a written finding by the office that the office cannot achieve either or both of such deadlines or any component thereof, that such waiver is justified as outside the office's control, and the factors causing the need for the waiver. Such written finding shall certify that the conditions set forth in subparagraph (v) of this paragraph are met. The proposed waiver shall provide a new deadline or deadlines for meeting the mandate or mandates. Such proposal shall contain the factual evidence for each factor causing the need for the proposed waiver. Such waiver proposal shall also contain any steps taken to avoid the need for a waiver, including the alternatives considered to avoid the need for a waiver. In no case shall the new deadline or deadlines be longer than necessary to address the factors causing the need for the waiver.

(iv) For the purposes of subparagraph (iii), (v) and (vi) of this paragraph, the term:

(A) "justified as outside the office's control" shall include significant delays in permits or other approvals by agencies other than the office and the power authority of the state of New York, the unavailability of materials or supplies critical to completion of the project and strikes and other work stoppages. Such term shall not include the inability to obtain sufficient funding for the project from any source, including New York state.

(B) "component" shall include any discrete component of the work, including work on a single building, or section of a building that is part of the project. In the case of a waiver proposal for a component or components of the work, the office shall incorporate into its waiver proposal any feasible measures to maximize the likelihood of compliance with the mandate set forth in subparagraph (i) of this paragraph for work for other components of the project not covered by the waiver proposal.

(v) The advisory committee may approve in whole or in part, modify or disapprove the waiver proposal set forth in subparagraph (iii) of this paragraph in a written decision. The advisory committee may not approve such proposal in whole or in part or modify such proposal unless the office certifies that such action will not impede the achievement of the statewide greenhouse gas emissions limits set forth in section 75-0107 of the environmental conservation law, and the targets established in subdivision two of section sixty-six-p of the public service law, and the advisory committee confirms this in its written decision.

(vi) The office shall promptly respond in writing to any written inquiries made by the advisory committee and provide any records or documents requested and shall appear at any meeting of the advisory committee at which its presence is requested to answer questions from the committee concerning the waiver proposal. The request for approval, the advisory committee's written decision and any written documents, records or approvals used for the advisory committee's decision shall be made promptly available to any member of the public when requested and promptly posted on the website mandated by paragraph (c) of subdivision three of this section.

(b) The project and the empire state plaza complex shall comply with the CLCPA, and any rules and regulations issued thereunder, and, in particular, section seven of such law; the statewide greenhouse gas emissions limits set forth in section 75-0107 of the environmental conservation law; and the targets established in subdivision two of section sixty-six-p of the public service law. Nothing in this paragraph shall preclude the office from mandating lower greenhouse gas emissions

1 limits or compliance with greenhouse gas emissions limits in a shorter
2 timeframe than set forth in section 75-0107 of the environmental conser-
3 vation law, or in mandating a higher percentage of renewables or in a
4 shorter timeframe than in subdivision two of section sixty-six-p of the
5 public service law. Except in regard to the provision regarding to the
6 emergency generator as set forth in paragraph (a) of this subdivision,
7 any action taken in furtherance of the project that leads to any
8 increase in the emissions of greenhouse gases shall be deemed inconsis-
9 ent with and in interference with the attainment of the statewide green-
10 house gas emissions limits established in article seventy-five of the
11 environmental conservation law and therefore shall trigger the process
12 set forth in subdivision two of section seven of the CLCPA.

13 3. (a) Within sixty days of the effective date of this section, the
14 office shall establish an advisory committee to advise it on the prepa-
15 ration, design and content of the plan. Such plan shall be completed no
16 later than January thirty-first, two thousand twenty-seven. The advi-
17 sory committee shall consist of the commissioner of the department of
18 environmental conservation and the chief executive officer of NYSERDA,
19 or their designees, and additional members which shall be appointed by
20 such commissioner in consultation with such chief executive officer, as
21 follows: three representatives of Albany community organizations, at
22 least two of which are from organizations whose mission, in whole or in
23 part, is to represent the interests of the Arbor Hill and/or Sheridan
24 Hollow neighborhoods in Albany; two additional representatives of local
25 environmental justice organizations; one individual not employed by New
26 York state with recognized expertise in renewable energy; a represen-
27 tative of labor organizations; a scientist with expertise in energy and
28 climate policy; an engineer with expertise in energy (including geother-
29 mal) and climate policy; and the mayor of Albany or their designee. The
30 advisory committee shall meet quarterly, or additional times as the
31 committee shall by majority vote determine. At such meetings, which
32 shall be open to the public, the office and the power authority of the
33 state of New York shall orally and in writing report on the progress
34 made in completing the project and otherwise implementing this section,
35 including but not limited to: the progress of any studies performed in
36 whole or in part to implement this section, and the progress made in
37 reducing greenhouse gas emissions at the empire state plaza complex in
38 compliance with section 75-0109 of the environmental conservation law.
39 The advisory committee shall be entitled to the work product or other
40 data which informed any recommendations in the plan, subject to any
41 reasonable confidentiality requirements established by the office. The
42 advisory committee members shall receive no compensation for their
43 services but shall be reimbursed for their actual and necessary expenses
44 incurred in the performance of their duties. All agencies of the state
45 or subdivisions thereof may, at the request of the advisory panel or the
46 office, provide the advisory panel with such facilities, assistance and
47 data as will enable the advisory panel to carry out its powers and
48 duties. The failure of the office to establish the advisory committee
49 or to do so in a timely fashion, or of the advisory committee to engage
50 in any conduct mandated by this subdivision shall not be a basis for
51 extending the deadline set forth in subparagraph (i) of paragraph (a) of
52 subdivision two of this section.

53 (b) Each member of the advisory committee shall be entitled to one
54 vote. No action may be taken by the advisory committee unless there is
55 a quorum, which shall at all times be a majority of the members of the
56 committee.

1 (c) The office shall be transparent in its work to develop the plan
2 and shall maintain a website where a draft plan and other documents
3 relevant to its development shall be posted for public review at least
4 fourteen days prior to the first of the public hearings mandated by this
5 paragraph. The advisory committee shall hold at least two public hear-
6 ings at least sixty days prior to the release of the final plan, of
7 which one shall be held in the Arbor Hill or Sheridan Hollow neighbor-
8 hoods and one shall be held during the evening or weekend hours. The
9 advisory committee shall make provisions for online and telephonic
10 attendance and participation. At such public hearings, the draft plan
11 shall be made available in written form for those physically attending.
12 Provisions shall also be made for written comments on the draft plan.

13 (d) The plan shall contain recommendations on regulatory measures and
14 other state actions to ensure that the mandates in subdivisions two and
15 three of this section and section ninety-one of the public buildings law
16 are met. The measures and actions set forth in the plan shall include:

17 (i) a timeline for planned steps toward the completion of the project,
18 including, but not limited to construction of the project and obtaining
19 the necessary permits to begin operation. The timeline should maximize
20 the potential for achieving, and if feasible making greater emissions
21 reductions than the statewide greenhouse gas emissions limits set forth
22 in section 75-0107 of the environmental conservation law and meeting the
23 other mandates of the CLCPA;

24 (ii) measures to maximize the benefits to the local community, includ-
25 ing prioritizing the reduction of greenhouse gases and co-pollutants and
26 improving public health in the local community;

27 (iii) measures to optimize thermal load sharing, energy efficiency,
28 demand response, and energy conservation;

29 (iv) comprehensive consideration of renewable heat exchange systems or
30 a combination of such systems to meet the heating and cooling needs of
31 the empire state plaza complex, including but not limited to: geothermal
32 heat exchange with the earth, geothermal heat exchange with the Hudson
33 River, open-loop and closed-loop geothermal heat exchange with the aqui-
34 fer, heat exchange with potable water supplies, heat recovery from
35 wastewater sources, air-source heat pump technology, and thermal stor-
36 age, provided that such systems do not use combustion-based or fossil
37 fuel energy;

38 (v) prioritization of electricity procurement from renewable sources
39 within New York Independent System Operator (NYISO) Zone F, especially
40 sources most capable of providing electricity serving real-time load
41 conditions of the empire state plaza complex. This shall include, but
42 not be limited to, consideration of projects that expand electricity
43 generation from ecologically-responsible, run-of-the-river hydroelectric
44 facilities within the region;

45 (vi) electricity service upgrades for the empire state plaza complex
46 necessary to support measures identified in this section; and

47 (vii) to the extent feasible, measures to ensure that the work
48 performed on the state capitol building and other buildings or struc-
49 tures that are part of the complex proceed contemporaneously or during
50 overlapping timeframes with the work done on other buildings, or struc-
51 tures that are part of the complex, in such a manner as to maximize the
52 likelihood of compliance with the mandate set forth in subparagraph (ii)
53 of paragraph (a) of subdivision two of this section.

54 (e) In designing the plan, the office shall be guided by any comments
55 or recommendations made by the advisory committee.

(f) The plan shall designate the geographic boundaries of the local community. In designating such boundaries, which shall include the Albany Sheridan Hollow, Arbor Hill, Center Square, Mansion, Washington Park, West Hill, and South End neighborhoods, the office shall consider including in its designation any other communities that experience impacts on their water, air quality, noise and traffic from the empire state plaza complex.

(g)(i) Any project that may be funded as a result of the renewable capitol project completed pursuant to this section shall: (A) be deemed a public work project subject to article eight of the labor law; (B) require that the component parts of any renewable capitol project are produced or made in whole or substantial part in the United States, its territories or possessions, subject to a waiver provision similar to the one contained in subdivision two of section sixty-six-s of the public service law; (C) contain a requirement that any public owner or third party acting on behalf of a public owner enter into a project labor agreement as defined by section two hundred twenty-two of the labor law for all construction work; and (D) require the payment of prevailing wage standards consistent with article nine of the labor law for building services work.

(ii) Notwithstanding any provision of law to the contrary, all rights or benefits, including terms and conditions of employment, and protection of civil service and collective bargaining status of all existing public employees and the work jurisdiction, covered job titles, and work assignments, set forth in the civil service law and collective bargaining agreements with labor organizations representing public employees shall be preserved and protected. Any such project shall not result in the: (A) displacement of any currently employed worker or loss of position (including partial displacement as such a reduction in the hours of non-overtime work, wages, or employment benefits) or result in the impairment of existing collective bargaining agreements; (B) transfer of existing duties and functions related to maintenance and operations currently performed by existing employees of authorized entities to a contracting entity; or (C) transfer of future duties and functions ordinarily performed by employees of authorized entities to a contracting entity.

(h) In the case of any conflict as to the requirements of this section and section ninety-one of the public buildings law in regard to the project, this section shall prevail.

§ 3. The tenth undesignated paragraph of section 1005 of the public authorities law, as added by chapter 55 of the laws of 1992, is amended to read as follows:

The authority is further authorized, as deemed feasible and advisable by the trustees, to acquire, maintain, manage, operate, improve and reconstruct as a project or projects of the authority one or both of the steam generation facilities owned by the state known as the Sheridan ~~[avenue] Avenue~~ steam ~~[generating]~~ plant ~~[on Sheridan avenue in the city of Albany and used to supply steam to state facilities]~~, together with any properties, buildings and equipment at the sites thereof or ancillary thereto, for the generation and sale of thermal energy and the cogeneration and sale of electricity for use by facilities of the state within the county of Albany. All the authority's costs, including its acquisition, capital, operating and maintenance costs, shall be recovered fully from the customers receiving service from such project or projects. Thermal energy and electricity not required by the state may be sold by the authority to others. The authority is not authorized to

1 use refuse or refuse-derived fuel in operating the project or projects.
2 As of the time period specified in paragraph (a) of subdivision two of
3 section two hundred four of the executive law, all of the energy,
4 including but not limited to heat, cooling and electricity, produced at
5 the Sheridan Avenue steam plant shall utilize renewable energy systems.

6 Any agreement for such acquisition shall [~~insure~~] ensure that the
7 authority is not liable or otherwise responsible for circumstances arising
8 from the prior operation of such facilities. The acquisition and
9 purchase of such land, buildings and equipment by the authority, and any
10 actions taken to effect such acquisition and purchase, are hereby exempt
11 from the provisions of article eight of the environmental conservation
12 law. The application of such exemption shall be strictly limited to the
13 acquisition and purchase of such land, buildings and equipment by the
14 authority and such agreements with the state. Nothing herein shall
15 exempt the authority from otherwise applicable laws respecting the
16 expansion, conversion, operation and maintenance of such land, buildings
17 and equipment. For the purposes of this subdivision, the terms "renewa-
18 ble energy systems" and "Sheridan Avenue steam plant" shall have the
19 same meanings as in subdivision one of section two hundred four of the
20 executive law.

21 § 4. Subdivisions 2 and 3 of section 90 of the public buildings law,
22 as added by section 5 of part RR of chapter 56 of the laws of 2023, are
23 amended to read as follows:

24 2. "Decarbonization" and "decarbonize" means eliminating all on-site
25 combustion of fossil-fuels and associated co-pollutants with the excep-
26 tion of back-up emergency generators and redundant systems needed to
27 address public health, safety and security, providing heating and cool-
28 ing through thermal energy, and thermal energy networks, from non-com-
29 bustion sources, and to the greatest extent feasible producing on-site
30 electricity that is one hundred percent renewable. Notwithstanding the
31 provisions of this subdivision, for purposes of the empire state plaza
32 complex, such terms shall mean meeting the requirements of subdivisions
33 two and three of section two hundred four of the executive law, and
34 section ninety-one of this article, as such requirements are applicable
35 to the empire state plaza complex.

36 3. "Highest-emitting facilities" means state-owned facilities that are
37 among the highest producers of greenhouse gas emissions and collectively
38 account for at least thirty percent of the greenhouse gas emissions as
39 recorded by the authority's Build Smart NY program established pursuant
40 to Executive Order 88 of 2012. Notwithstanding the provisions of this
41 subdivision, one of such facilities shall be the empire state plaza
42 complex. For purposes of this article, the "empire state plaza complex"
43 shall have the same meaning as defined in paragraph (e) of subdivision
44 one of section two hundred four of the executive law.

45 § 5. The opening paragraph and paragraph (g) of subdivision 1 and
46 subdivision 2 of section 91 of the public buildings law, as added by
47 section 5 of part RR of chapter 56 of the laws of 2023, are amended and
48 a new paragraph (l) is added to subdivision 1 to read as follows:

49 The authority is hereby authorized and directed to establish decarbon-
50 ization action plans for fifteen of the highest-emitting facilities that
51 will serve as a basis for decarbonizing the facilities to the maximum
52 extent practicable, and subject to any needed redundant systems and
53 back-up systems needed for public safety and security. [~~Decarboniza-~~
54 ~~tion~~] Except as provided in paragraph (g) of subdivision three of
55 section two hundred four of the executive law, decarbonization action
56 plans shall address the following matters at a minimum:

1 (g) [~~Identification~~] Except for the empire state plaza decarbonization
2 plan, identification of any parts of the facilities that cannot be
3 decarbonized, with explanations.

4 (l) In the case of the empire state plaza complex decarbonization
5 action plan, any items designated by the advisory committee under para-
6 graph (e) of subdivision three of section two hundred four of the execu-
7 tive law.

8 2. [~~The~~] Except for the decarbonization plan for the empire state
9 plaza complex, the authority shall complete the decarbonization action
10 plans no later than January thirty-first, two thousand twenty-six,
11 provided that such date shall be extended for justifiable delay outside
12 the control of the authority, including, but not limited to, previously
13 planned or current major renovations or replacements to the facilities,
14 delayed permitting or approval by building owners, local authorities, or
15 other essential parties, external resource bottlenecks, pending or unre-
16 solved investigations into utility grid capacity or similar circum-
17 stances where crucial information is not yet available or determined.
18 Such extension shall be limited to the time necessary to address the
19 factors causing such delay. The empire state decarbonization plan shall
20 be completed by January thirty-first, two thousand twenty-seven, and no
21 exclusions for justifiable delays shall be permitted.

22 § 6. Subdivisions 5, 6 and 7 of section 91 of the public buildings law
23 are renumbered subdivisions 6, 7 and 8, and a new subdivision 5 is added
24 to read as follows:

25 5. The authority shall be authorized to use the funding provided in
26 subdivision four of this section to prepare the decarbonization action
27 plan for the empire state plaza complex, to update or modify any study
28 or plan undertaken, with the goal, in whole or in part of reducing
29 greenhouse gas emissions applicable to such complex, provided that such
30 plan or study in the view of the authority would provide information
31 useful for achieving the purposes of such section.

32 § 7. This act shall take effect immediately.